SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Partial-summary-judgment motion.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Motion for Partial Summary Judgment

Filed November 3, 2025 — District ECF No. 42

Copper Kestrel Logistics, LLC moves under Federal Rule of Civil Procedure 56 for summary judgment on Count I of Asterglen's complaint only. Count I seeks $480,000 in contract damages based on activity at twenty-nine terminals beyond the twelve listed in the April 15, 2024 Pilot License.

Section 9.2 required written notice describing an asserted material breach and a fifteen-calendar-day opportunity to cure before a party terminated for breach or demanded breach damages. Asterglen's July 22 communication disabled a shared credential, declared immediate termination, and demanded the full $480,000 without allowing any cure interval. Copper Kestrel requests judgment that Asterglen cannot recover on Count I because it did not satisfy that agreed condition before seeking breach damages.

This motion does not seek judgment on Asterglen's interference claim against Meridian Silt or on Copper Kestrel's $120,000 counterclaim. Those matters remain for later adjudication. Copper Kestrel preserves all defenses and does not ask the Court to resolve the disputed scope of oral permission attributed to the July 8 call.

Grounds for the motion

First, the operative contract text is undisputed. The signed license covered twelve terminals. The June 3 proposal for twenty-nine additional terminals was not executed. Section 9.2 nevertheless governed the response to an asserted material breach and required written notice plus fifteen calendar days to cure before termination or a demand for breach damages.

Second, the sequence is undisputed in the respect material to this motion. Asterglen's June 10 response set written load-test conditions. Forty-one identifiers were provisioned by July 1. The parties spoke on July 8 and dispute what temporary activity was permitted. Asterglen completed a compliance audit on July 18. It did not then deliver a Section 9.2 cure notice. On July 22 it imposed immediate consequences and demanded $480,000, giving Copper Kestrel zero days to cure.

Third, cure was not impossible as a matter of the present evidence. Technical witnesses mapped an orderly reduction from forty-one identifiers to the original twelve, and a controlled test completed that sequence within three business days. Copper Kestrel's disagreement about breach did not amount to a refusal to cure under protest.

Fourth, Asterglen's futility position cannot replace the written sequence the parties adopted. The license contains no stated futility exception, and the feasibility evidence supplies an independent reason not to infer one here.

Evidentiary support and requested scope

The accompanying memorandum at District ECF No. 43 explains the legal and factual basis for relief. Copper Kestrel's statement at District ECF No. 44 identifies the propositions supported by the Pilot License, June documents, provisioning ledger, July communications, compliance audit, corporate testimony, technical results, and damages materials.

The evidence is offered for defined purposes. Copper Kestrel relies on the conflicting July 8 testimony to show that oral authorization is genuinely disputed, not to obtain a finding that its recollection is necessarily true. It relies on the July 18 audit and July 22 communication to establish the absence of a written cure opportunity. It relies on the three-business-day reduction evidence to answer Asterglen's assertion that notice would have been useless.

The requested judgment is limited to Count I against Copper Kestrel. Count II concerns Meridian's alleged interference and requires proof about Meridian's knowledge, conduct, and intent. Copper Kestrel's counterclaim concerns the alleged consequences of immediate disablement, including a claimed $120,000 loss and potential offset. Although those matters share communications and technical evidence with Count I, this motion does not request their adjudication.

Copper Kestrel asks the Court to avoid findings unnecessary to the contract-notice issue and to preserve all genuinely disputed facts for the claims that remain.

Relief requested

Copper Kestrel requests an order granting partial summary judgment in its favor on Count I and dismissing that contract claim with prejudice. It requests no judgment for money on the counterclaim, no disposition of Count II, and no determination that Meridian did or did not interfere with the Pilot License.

The requested order may state that Asterglen did not provide the written breach notice and fifteen-calendar-day cure opportunity required by Section 9.2 before terminating and demanding breach damages. It may further state that the disputed July 8 permission does not alter the result: even assuming the additional activity exceeded authorization, the agreed notice-and-cure sequence still preceded the remedy Asterglen selected.

Copper Kestrel does not request a ruling that every disagreement permits cure, that a contractual notice provision can never be excused, or that the later reduction test establishes all live conditions with certainty. Relief follows on this evidentiary presentation because the contract has no applicable exception, no cure opportunity was given, and evidence supports feasibility within the agreed interval.

The motion is supported by District ECF Nos. 43 and 44 and the properly identified exhibits. Copper Kestrel requests such additional relief as is consistent with judgment on Count I alone while Count II and the $120,000 counterclaim remain pending.